

MOOT PROBLEM -2

Semi-Finals & Final

1. The **Union of Magnovia** is a sovereign, democratic, and secular state that ranks first in the world by population. Approximately 48% of its population are women, while 25% are children. The country's legal framework comprises a wide range of legislation and constitutional safeguards designed to enable children's holistic development and protect them from abuse and violation, reflecting its strong commitment to justice, equality, fairness, and the rule of law. Furthermore, the Union of Magnovia is a party to various international conventions and protocols that safeguards the rights of children in all aspects of life.
2. In the contemporary digital landscape, rapid technological advancements have significantly influenced the manner in which harm is inflicted, particularly against children. What once required physical presence can now be achieved with a single click, enabling digital abuse that can cause irreparable harm. The expansion of Artificial Intelligence, deepfake technology, and encrypted digital platforms has enabled sophisticated forms of virtual abuse, including the creation and dissemination of sexually explicit deepfake content and the facilitation of narcotic transactions through e-commerce platforms that operates in an anonymous manner. This raises significant moral, legal and policy questions that requires the intervention of the law to protect the rights and dignity of children in the digital age.

I. The case of Ms. Sneha Mehra

3. **Ms. Sneha Mehra**, a 16-year-old award-winning school poet from the *city of Gloriosa* in Magnovia, is well recognized for her literary contributions, particularly in the field of women's rights. She frequently shares video clips of her speeches on social media platforms, including Instagram and Facebook, where she enjoys a substantial following of several million people.
4. In February 2025, Sneha Mehra was shocked and distressed by an incident that went viral across social media, in which her face was superimposable into a deepfake pornography video. Ananya's friends stumbled upon the video in a group chat and

promptly alerted her. Subsequently, numerous copies of the deepfake video circulated across social media platforms, causing severe distress, trauma, and a violation of her dignity.

5. After this incident, Mrs. Ananya Mehra, mother of Sneha had lodged a complaint with the Cyber Crime Police Station in the city of Gloriosa, following which a First Information Report (FIR) was registered under the provisions of the Protection of Children from Sexual Offences (POCSO) Act, 2012, Information Technology Act, 2000, and related provisions of the Digital Personal Data Protection (DPDP) Act, 2023.
6. Dissatisfied with the measures taken by the police and aggrieved by the insufficient remedies to protect her daughter's dignity and right to privacy, Ananya Mehra subsequently filed a *writ petition* in the Supreme Court of Magnovia. In her petition, she challenged the inaction of the state machinery, stating that the violation of her daughter's dignity constitutes a breach of her fundamental rights, and that the mechanisms under the existing legislation are not enough to address the growing threat posed by deepfake technologies.

II. The Case of Ms. Kaveya

7. **Ms. Kaveya**, a 17-year-old student, is presently pursuing her studies in Class XII at the Government High School situated in the city of Lilloria, Magnovia. On March 2025, a verbal altercation arose between Ms. Kavya and her classmate, Rakesh (18 years), on the school premises. Subsequently, following intervention by their class teacher, Rakesh was suspended from the school due to his disciplinary conduct.
8. Rakesh was angry about the incident, and with the help of a few friends who were college students, created a face-swapped video depicting Ms. Kaveya in sexually suggestive scenarios. This video was subsequently circulated through anonymous social media platform "*Violatit accounts*" and went viral, causing severe distress, embarrassment, violation of dignity, and harm to Ms. Kavya's mental well-being.
9. Mr. Umesh, Ms. Kaveya's father, lodged a police complaint, following which an FIR was registered against Rakesh and his friends. During the trial before the Special Court for POCSO cases, the accused were convicted and sentenced to simple imprisonment for a period of 2 years under the Information Technology Act and the Bharatiya Nyaya Sanhita (BNS). However, the Special Court declined to apply the Protection of Children

from Sexual Offences (POCSO) Act, stating that there was no physical contact, pornography, or malicious intent, and that Artificial Intelligence had been used in creating the video.

10. Aggrieved by the Special Court's decision, an appeal was preferred before the High Court, challenging both the adequacy of the punishment and the restrictive interpretation of POCSO in cases involving digital abuse, particularly in view of the growing influence of Artificial Intelligence and its ability to harm children's dignity and well-being. The High Court upheld the view of the Special Court, stating that "***malicious intent to harm or exploit was absent within the meaning of Section 13 and Section 14 of POCSO***".
11. Therefore, the State, acting upon Mr. Umesh's representation and following its own assessment, preferred an ***appeal*** to the Supreme Court of Magnovia, contending that there is a pressing need for a reasonable and expansive interpretation of POCSO and for a robust legal framework to address offences arising out of the deepfake technology in the digital era.

III. The Case of Aarav Dheena

12. In May 2025, the Narcotics Control Bureau (NCB) of Magnovia, while conducting its routine surveillance operations, intercepted a Telegram group named ***Torpedo Truck*** linked to a dark web drug distribution channel. The probe revealed that the group comprised over 500 members, wherein small quantities of synthetic drugs were sold through cryptocurrency wallets that were linked to school-issued identity cards. It was further discovered that the members belonged to the 14 to 20 age group, thereby including a substantial number of minors under the age of 18.
13. **Aarav Dheena**, a 17-year-old student from Dirajnagar, Magnovia, was found unconscious in his school hostel room on the morning of May 16, 2025. He was taken to the nearest District General Hospital by the school authorities, but he was declared dead. The forensic toxicology report later confirmed that Aarav's death was caused by the consumption of a high dose of a **synthetic hallucinogen**, which had been procured from an anonymous vendor operating on the dark web.
14. The Police investigation revealed that Aarav had accessed the platform using his school-issued tablet and had been communicating with the dealer through encrypted messaging applications. The vendor's profile masked by blockchain technology, showed dozens of sales to juvenile accounts across the country.

15. Following Aarav Dheena's death, public outrage mounted over the rising cases of adolescent drug abuse facilitated by unregulated online websites and e-commerce platforms. Several civil society organisations raised concerns about the absence of a robust legal and technological framework to monitor and prevent access to the dark web by minors. ***La-missile***, a cyber safety and child protection NGO, filed a **Public Interest Litigation (PIL)** under Article 32 of the Constitution of Magnovia contended that the Information Technology Act, 2000, in its current form, does not adequately address the emerging threats posed by anonymised digital platforms, nor does it contain preventive or protective mechanisms to shield children and adolescents from illicit content on the dark web.

16. The Hon'ble Supreme Court of Magnovia, taking note of the rising incidents of juvenile cybercrimes and the need for a robust legal framework to address the offences arising therefrom, it decided to club all the petitions together and placed the matter before a Constitutional Bench for final hearing.

Issues for Consideration

1. Whether the creation and circulation of deepfake pornography featuring Ms. Sneha Mehra amounts to violation of her fundamental rights under Article.21 of the Constitution of Magnovia.
2. Whether the Special Court erred in adopting a restrictive interpretation of Sections 13 and 14 of the Protection of Children from Sexual Offences (POCSO) Act, 2012, thereby excluding deepfake pornography from its ambit.
3. Whether Aarav Dheena's death caused by a drug obtained through dark web platform, highlights a legislative vacuum under the provisions of Information Technology Act, 2000 and narcotics laws.
4. Whether the provisions of Digital Personal Data Protection Act, 2023 and other applicable laws are sufficient to address cyber offences involving minors.

Note:

- i. The issues framed above are not exhaustive. Participants are at liberty to frame additional issues including the challenges relating to jurisdiction.

- ii. The laws in force in the **Union of Magnovia** are in *pari-materia* with those applicable in the **Union of India**.

DISCLAIMER:

This moot problem is a **fictitious legal scenario** created solely for the purpose of academic purposes. Any resemblance to actual persons, entities or events is purely coincidental.

*This Moot Proposition has been exclusively drafted by **Mr. V. ANANDH KUMAR, M.L., (Ph.D.) in Law, Academician from Chennai**, for the purposes of this competition. Any attempt by participants to contact the drafter to seek clarification shall result in immediate disqualification of the concerned team. The decision of the Organizing Committee in this regard shall be final and binding.*
